

LAW AND MOTION TENTATIVE RULINGS

DATE: JULY 22, 2026 TIME: 8:30 A.M.

subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc. § 2030.290, subd. (c).)

“Where there has been no timely response to a CCP §2031.010 demand, the first thing the demanding party must do is to seek an ordering compelling a response. [CCP §2031.300].” (Weil Brown *Civil Procedure Before Trial* (TRG 2025) § 8:1483.) Failure to respond timely waives all objections. “If a motion to compel responses is filed and a party properly asks for monetary sanctions, the court ‘shall’ impose a monetary sanction against the losing party *unless* it finds that party made or opposed the motion ‘with substantial justification’ or other reasons make the sanction ‘unjust.’” (Weil & Brown *Civ. Pro. Before Trial* (TRG 2025) § 8:1488.)

Plaintiffs demonstrated they served discovery requests on December 18, 2025. Defendant failed to respond to the requests and did not oppose the motion. Defendant is ordered to serve verified code-compliant responses to post-judgment interrogatories and post-judgment requests for production of documents attached as exhibits 1 and 2 to the Declaration of Williamson, within 20 days of the date of the hearing. Objections are waived.

Plaintiffs request sanctions in the amount of \$2,944.50 (reduced by plaintiffs from \$3,934.50) in attorneys’ fees, plus \$79.96 in costs. The Court awards reasonable monetary sanctions in the amount of \$1,500.00, plus \$79.96 in costs, pursuant to Code of Civil Procedure sections 2030.290, subd. (c) and 2031.300, subd. (c), against defendant. Sanctions shall be paid no later than August 11, 2026.

No. 26CV00214

ARCE v. COUNTY OF SANTA CRUZ

**PETITIONER’S MOTION FOR LEAVE TO FILE SECOND AMENDED
PETITION FOR WRIT OF MANDATE**

Petitioner’s motion is granted in part. Petitioner may file an amended petition that concisely, in ordinary and plain language, describes the alleged violations of the California Public Records Act (“CPRA”) related to his single request. Petitioner shall not attach any exhibits other than his request; all other evidence he believes is related to County’s alleged violations of the CPRA may be incorporated into later briefing on the issues. Any such amendment shall be filed no later than August 7, 2026.

Self-represented petitioner Archer Arce filed a petition for writ of mandate to compel his employer, County of Santa Cruz, to produce documents pursuant to his CPRA requests. He seeks six categories of records dated January 1, 2024 through the date of search regarding a directive

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from his supervisor to remove the image of an inverted flag from his email signature line and profile. (First Amended Petition, Ex. A, CPRA Request no. 25-808, submitted on November 15, 2025.) He seeks the following categories of documents related to that directive: policies, standards, and legal analysis; enforcement and application; records related to his email profile image and his supervisor's directive; letterhead admonition (directing him not to use County letterhead in connection with the dispute); retention, search scope and backups related to his request; and external communications and public statements regarding the issue.

The operative pleading (first amended petition) is nine pages long, identifies three causes of action (failure to promptly produce records, failure to provide valid determination, and declaratory relief/breach of duty to preserve) and incorporates approximately 34 pages of exhibits. The proposed amendment has swelled to 100 pages, adds three causes of action, and includes 32 exhibits totaling approximately 200 pages. The causes of action are now failure to promptly produce responsive records, failure to issue a lawful determination within statutory period, unlawful redaction, unlawful withholding, failure to discharge mandatory duty to assist, and declaratory relief. Both petitions are brought solely under the CPRA and Code of Civil Procedure section 1060 (declaratory relief). The dispute remains related to petitioner's single CPRA request of November 15, 2025.

Leave of court is required to amend any pleading except as provided by Code of Civil Procedure sections 472 and 474. A judge may, in furtherance of justice and on proper terms, allow the amendment of any pleading at any time, even after commencement of trial. (Code Civ. Proc., §§ 473, subd. (a), 576; *Hong Sang Market, Inc. v. Peng* (2018) 20 Cal.App.5th 474, 488 [leave to amend any pleading is entrusted to judge's sound discretion].) Judges should generally be liberal in permitting amendments to pleadings. (*Ibid.*) Judges must consider factors of party conduct, potential prejudice to parties, timeliness of amendment, or unwarranted delay in determining if an amendment is permitted. (See *Duchrow v. Forrest* (2013) 215 Cal.App.4th 1359, 1377; *Emerald Bay Community Assn. v. Golden Eagle Ins. Corp.* (2005) 130 Cal.App.4th 1078, 1097-98 [even if proposed amendment in proper form, unwarranted delay in bringing it may be a valid reason for denial].) A court has ample discretion to deny a motion for leave to amend where a proposed amendment is legally futile, such as where it does not state a cause of action. (*Jo Redland Trust, U.A.D. 4-6-05 v. CIT Bank, N.A.* (2023) 92 Cal.App.5th 142, 161-162; *Vaillette v. Fireman's Fund Ins. Co.* (1993) 18 Cal.App.4th 680, 691; *Singh v. Lipworth* (2014) 227 Cal.App.4th 813, 828.)

Here, petitioner concedes the proposed amendment is a "comprehensive restatement," "a full-scale reorganization and expansion of the factual and legal framework presented to the Court." (Pet. Statement of Proposed Amendments.) The Court finds much of the proposed amendment futile, unnecessary, and confusing since it goes well beyond ultimate facts and

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describes evidentiary facts. (Code Civ. Proc., § 425.10; *Doheny Park Terrace Homeowners Assn. Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099 [“It has been consistently held that ‘a plaintiff is required only to set forth the essential facts of his case with reasonable precision and with particularity sufficient to acquaint a defendant with the nature, source and extent of his cause of action.’”]). The Court recognizes that petitioner is entitled to amend to include new duties which he believes the County failed to uphold, but his exhaustive description of each alleged failing by County, along with legal citations, is unnecessary and improper. Those matters shall be saved for argument later in this case.